

A.L. SAFE TRANSPORTATION CONTRACT FOR SERVICES

This Contract (this "Contract") is made effective as of the 2023-24 school year, by and between A.L.Safe Transportation, of 9733 ravenna Rd, Unit F, Twinsburg Ohio 44087, and Brecksville District, of 6638 Mill Road, Cleveland OH 44141.

1. DESCRIPTION OF SERVICES. Starting on December 8, 2023, A.L.Safe Transportation will provide to Brecksville School District the following services to the following students:

Danny Rutt

School transportation services (pickup and drop-off to and from school).

2. PAYMENT. Payment shall be made to A.L.Safe Transportation and picked up from the Board of Education, 6638 Mill Road, Cleveland, OH 44141. Payments must be received no later than 7 business days after its issue date.

Brecksville School District agrees to pay A.L.Safe Transportation as follows:

Mutually agreed upon amount for daily pickup and/or dropoff for students:

Danny Rutt- \$187.50 one way/ \$375 round trip

In addition to any other right or remedy provided by law, if Brecksville Ohio School District fails to pay for the Services when due, A.L.Safe Transportation has the option to treat such failure to pay as a material breach of this Contract, and may cancel this Contract and/or seek legal remedies, provided that the District has been given thirty (30) days to cure the alleged breach.

3. WARRANTIES.

- a. If Brecksville School is canceled due to weather, A.L transportation will be notified that morning, and payment will not be required on those days.. If a student calls off at the last minute, when a driver is already en route, or does not notify at all then Brecksville District will continue with payment.

4. TERM. This Contract will remain in effect for a period of School calendar year 2023-24.

5. INDEMNIFICATION. A.L.Safe Transportation agrees to indemnify and hold Brecksville School District harmless from all claims, losses, expenses, fees including attorney fees, costs, and judgments that may be asserted against Brecksville School District that result from the acts or omissions of A.L.Safe Transportation and/or A.L.Safe Transportation's employees, agents, or representatives. Brecksville City School District will be additionally insured. A copy of our liability certificate will be sent to you so you can see what coverage we will maintain and specific amounts.

7. REMEDIES ON DEFAULT. In addition to any and all other rights a party may have available according to law, if a party defaults by failing to substantially perform any provision, term or condition of this Contract (including without limitation the failure to make a monetary payment when due), the other party may terminate the Contract by providing written notice to the defaulting party. This notice shall describe with sufficient detail the nature of the default. The party receiving such notice shall have 30 days from the effective date of such notice to cure the default(s). Unless waived by a party providing notice, the failure to cure the default(s) within such a time period shall result in the automatic termination of this Contract.

8. FORCE MAJEURE. If performance of this Contract or any obligation under this Contract is prevented, restricted, or interfered with by causes beyond either party's reasonable control ("Force Majeure"), and if the party unable to carry out its obligations gives the other party prompt written notice of such event, then the obligations of the party invoking this provision shall be suspended to the extent necessary by such event. The term Force Majeure shall include, without limitation, acts of God, plague, epidemic, pandemic, outbreaks of infectious disease or any other public health crisis, including quarantine or other employee restrictions, fire, explosion, vandalism, storm or other similar occurrence, orders or acts of military or civil authority, or by national emergencies, insurrections, riots, or wars, or strikes, lock-outs, work stoppages, or other labor disputes, or supplier failures. The excused party shall use reasonable efforts under the circumstances to avoid or remove such causes of non-performance and shall proceed to perform with reasonable dispatch whenever such causes are removed or ceased.

10. CONFIDENTIALITY. A.L.Safe Transportation, and its employees, agents, or representatives will not at any time or in any manner, either directly or indirectly, use for the personal benefit of A.L.Safe Transportation, or divulge, disclose, or communicate in any manner, any information that is proprietary to "or confidential under the laws binding" Brecksville School District. A.L.Safe Transportation and its employees, agents, and representatives will protect such information and treat it as strictly confidential. This provision will continue to be effective after the termination of this Contract.

Upon termination of this Contract, A.L.Safe Transportation will return to Brecksville School District all records, notes, documentation and other items that were used, created, or controlled by A.L.Safe Transportation during the term of this Contract.

11. NOTICE. Any notice or communication required or permitted under this Contract shall be sufficiently given if delivered in person or by certified mail, return receipt requested, to the addresses listed above or to such other addresses as one party may have furnished to the other in writing. The notice shall be deemed received when delivered or signed for, or on the third day after mailing if not signed for.

12. ENTIRE CONTRACT. This Contract contains the entire agreement of the parties regarding the subject matter of this Contract, and there are no other promises or conditions in any other agreement whether oral or written. This Contract supersedes any prior written or oral agreements between the parties.

13. AMENDMENT. This Contract may be modified or amended if the amendment is made in writing and signed by both parties.

14. SEVERABILITY. If any provision of this Contract shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of this Contract is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.

15. WAIVER OF CONTRACTUAL RIGHT. The failure of either party to enforce any provision of this Contract shall not be construed as a waiver or limitation of that party's right to subsequently enforce and compel strict compliance with every provision of this Contract.

16. APPLICABLE LAW. This Contract shall be governed by the laws of the State of Ohio.

17. SIGNATORIES. This Agreement shall be signed on behalf of Brecksville School District by and on behalf of A.L.Safe Transportation by Jonathan Burge, Director and effective as

of the date first above written.

Service Recipient:
Brecksville School District



Jonathan Burge

December 7, 2023

School District:

Date:
